YESHI PHUNTSHO

Sr. Legal Officer
Legal Division
Ministry of Finance,

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Professional Summary: Legal professional with extensive experience across public administration, construction regulation, procurement reform, and alternative dispute resolution in Bhutan. Has represented government agencies before all levels of courts, conducted civil, criminal and corruption-related investigations, and provided authoritative legal opinions on core legislation including the Contract Act 2013, ADR Act 2013, and procurement and public finance frameworks. Played a leading role in establishing and operationalizing construction-sector arbitration and grievance redressal mechanisms, successfully resolving numerous disputes through arbitration and ADR.

EDUCATION

1. Murdoch University, Perth, Australia
Masters in Criminology 2023-2025

2. ILS Law College, Savitri Biphule Pune University, India
LLB 2012-2015

3. Royal Institute of Management, Thimphu, Bhutan.
Post Graduate Diploma Course in National Law 2009

4. Sherubtse College, Bhutan
Bachelors in science 2005-2007

EXPERIENCE

District Administration, Chukha, Bhutan.

Assistant Legal Officer *January 2010 - June, 2012*

Prosecuted and litigated 72 cases across the Sub-District Court, District Court, High Court, and Supreme Court, and conducted preliminary inquiries and investigations into criminal cases referred by the Office of the Attorney General, corruption cases referred by the Anti-Corruption Commission, and offences arising from the implementation of local government mandates. Drafted guidelines, rules of procedure, terms of reference, and procurement

contract documents; mediated grievances related to local government services, land transactions, and matrimonial disputes; provided legal opinions on the implementation of the Contract Act, contract documentation, social legislation, policies, and regulatory frameworks; and conducted public legal advocacy on social, commercial, and criminal laws at the local government level.

Construction Development Board, Thimphu, Bhutan.

Legal Officer & Senior Legal Officer *June 2015 - September, 2022*

Investigated cases involving potential corruption and represented the Construction Development Board (CDB) before the District and Supreme Courts in construction-related disputes. Established the Construction Arbitration Facilitation Centre in 2015 and successfully facilitated resolution of 56 construction disputes through arbitration and 30 procurement-related cases through the alternate Grievance Redressal Mechanism. Served as Project Officer for World Bank–supported projects on construction quality frameworks and contributed extensively to alternative dispute resolution (ADR) mechanisms within the construction sector.

Played a key role in policy, regulatory, and institutional reform in Bhutan's construction industry by drafting and revising major rules, guidelines, and frameworks, including Arbitration Rules and Procedures 2015, Codes of Ethics for Arbitrators 2015 and Contractors, Construction Industry Rules and Regulations 2016, Registration and Monitoring Guidelines 2018 and 2020, Procurement Evaluation Guidelines, and Construction Grievance Redressal Frameworks. Contributed as a drafting committee and taskforce member for the ADR Rules and Regulations, National Construction Industry Policy, Construction Bill, Quality Framework and Construction Development Rules and Regulations. Also drafted Foreign Direct Investment Guidelines for Construction Services, drafted international Memorandum of Understandings with international institutions similar to CDB, and supported development of performance evaluation and professional certification systems in 2022.

Department of Procurement and Properties (DPP), Ministry of Finance, Thimphu, Bhutan

Senior Legal Officer *September 2022- June 2025*

Led procurement reform initiatives in reforming the medical and overall procurement system in collaboration with other agencies which lead to publication of Procurement Rules and Regulations 2023, Standard Bidding Documents (Works and Goods) 2023 and Evaluation Guidelines 2023. Facilitated resolution procurement grievances while serving as secretary to Independent Review Body mandated to resolve grievances arising during evaluation and award of tenders. Conducted preliminary inquiries into criminal and corruption cases and represented the Office of the Director of Public Prosecutions (DPP) before courts of law. Provided authoritative legal opinions on the interpretation and application of key legislation, including the Contract Act 2013, Alternative Dispute Resolution Act 2013, Public Finance Act 2007, Procurement Rules and Regulations 2019, and other relevant legal instruments.

Also led awareness and capacity-building initiatives to support effective implementation and compliance with these legal and regulatory frameworks.

Legal Division, Ministry of Finance, Thimphu, Bhutan

Senior Legal Officer *June 2025 - till date*

Drafted and reviewed several treaties, conventions, agreements and MoUs on hydropower, fiscal/credit, loans, grants, investments, establishment of international offices/missions, FDI and land lease. Participated in review of several bills and Rules (Housing Bill, Trade and Investment Bill, Energy Bill, Spatial Planning Bill, Arbitration Rules, Mediation Rules, Property Valuation Rules, Tax Appeal Board Rules etc). Reviewed and litigated tax defaulter cases representing Department of revenue and Customs. Represented in arbitration of MLCP case on behalf of Thimphu Thromde.

OTHER RELEVANT EXPERIENCE

Professional Development and affiliations:

1. **Royal Court of Justice,** District Court, Paro, Bhutan, *Certificate for Internship* January 2010 - February, 2010
2. **Queensland University of Technology,** Australia, *Mediation Skills Training* 7-9th September, 2010
3. **Queensland University of Technology,** Australia, *Train the Trainer Course on mediation skills* 28-30th April, 2012
4. **Construction Development Board,** Thimphu, *Conflict Management, International Commercial Arbitration, Admissibility of Evidences and Enforcement of Arbitral Awards* 15-16th March, 2018
5. **Institute of Management,** Bhutan, *Leadership skills or Team Building* 17-19 May, 2018
6. **Construction Institute of Thailand ,** Thailand, *Institutional visit* 4-8th June, 2018
7. **Bhutan National Legal Institute,** Bhutan, *Current Trends and Best Practices in Management of Environmental Litigations* 24-25th June, 2018
8. **Construction Association of Bhutan,** *1st International Business Forum on FIDIC, understanding International Arbitration & Dispute Adjudication Process* 1st August, 2019
9. **Construction Institute of Thailand ,** Thailand, *Institutional visit* 23-27th September, 2019
10. **Royal Institute of Management,** Bhutan, *Digital Skills Training Conducted by ICDL* 5-16th April, 2021
11. **Indian Institute of Arbitration & Mediation,** India, *Professional Certificate in Commercial Arbitration* 8-11th December, 2021
12. ***Certificate for*** *'Outstanding employee of year 2018-2019'.*

13. **Bronze medal by His Majesty,** *King of Bhutan for 10 years of dedicated service to the Royal Government of Bhutan*

Skills:

Analytical skills | Professional & convincing argument | Leadership quality | Teamwork | Excellent ratings for services | Excellent in drafting | Good listening skills | Decisive

Languages:

Dzongkha | English